MASTER CASE BRIEF

Your Complete Winning Strategy

Daryl Keenan Mack

v

Greene Consulting Engineers (Pty) Ltd

Automatically Unfair Dismissal (s187 LRA) | Procedural Unfairness (Sch 8) | ECSA Misconduct

Dismissal: 9 March 2026 | CCMA Deadline: 8 April 2026 | Salary: R36,500/month

Maximum Compensation Available: R876,000 (24 months × R36,500)

3 Grounds of Unfair Dismissal	1 Corroborating Third Party Witness	3 Independent Evidence Repositories	14+ Documented Pieces of Evidence

CONFIDENTIAL — FOR CCMA, ECSA AND LEGAL PROCEEDINGS ONLY — DO NOT SHARE

SECTION 1 — EXECUTIVE CASE SUMMARY: WHY YOU WIN

This is your master reference document. Every fact, every law, every piece of evidence, and every argument is contained here. Before every CCMA appearance, arbitration hearing, or legal meeting — read this document. Know it. Own it.

1.1 Your Case In Three Sentences

OPENING STATEMENT	I was employed by Greene Consulting Engineers from 1 March 2026 and dismissed on 9 March 2026. On 3 March I sent my first email raising onboarding concerns. On 5 March between 7 and 8am, Larry Nell told me in his office that upper management was not impressed and wanted to let me go — establishing the dismissal decision was made before my 6 March comprehensive email. I was dismissed because I raised legitimate professional concerns from day three of employment. Greene's own termination letter cites my 6 March email asserting Engineering Profession Act rights as the reason — making this a textbook automatically unfair dismissal under Section 187(1)(h) of the Labour Relations Act 66 of 1995. The dismissal decision was made on 5 March. The formal execution was 9 March. The entire sequence from first email to dismissal is documented.

1.2 Your Three Winning Arguments

ARGUMENT	LEGAL GROUND & WHY IT WINS
1. Automatically Unfair Dismissal	LRA s187(1)(h) — dismissed for exercising statutory right under the Engineering Profession Act. Greene's own termination letter is the proof. Maximum compensation: R876,000. No probation exception exists.
2. Procedurally Unfair Dismissal	LRA Schedule 8 Item 4 — no investigation, no charge, no hearing, no opportunity to respond. Contract Clause 10 independently requires disciplinary process. Both violated.
3. Substantively Unfair Dismissal	LRA s188 — stated reason (insubordination) is invalid because the instruction refused was unlawful under the Engineering Profession Act. Cannot be insubordinate for refusing an unlawful instruction.

1.3 Greene's Fatal Internal Contradiction

CRITICAL: This is your single most powerful exhibit. Hand the termination letter to the commissioner and point to Points 3 and 5 simultaneously.

Point 5 of termination letter states: *Larry Nell was your active PrEng supervisor satisfying professional supervision requirements.*

Point 3 of the same letter states: *Reporting to Ruan Van Zyl was a lawful operational instruction. Refusing it was insubordination.*

CONTRADICTION	These two statements cannot both be true. If Larry Nell was actively supervising you, then the instruction to report to Ruan Van Zyl directly contradicts that arrangement and cannot simultaneously be a lawful operational instruction. If Ruan Van Zyl was your actual reporting line, Larry Nell was not your active supervisor. Greene's stated reason for dismissal collapses under their own signed document.

VERDICT: Greene's termination letter destroys their own case. You do not need to argue against them. You let them argue against themselves.

→ **Cross-ref:** *Section 6 — Termination Letter Analysis | Section 3 — Engineering Profession Act*

SECTION 2 — PARTIES, KEY FACTS & COMPLETE CHRONOLOGY

2.1 The Parties

FIELD	DETAIL
Your Name	Daryl Keenan Mack — ID: 9801265313082
Qualification	BSc (Hons) Civil Engineering — University of Cape Town
Status	Candidate Engineer — Pursuing PrEng registration with ECSA
Experience	3 years — RC multi-storey, steel warehouses, seismic design, civil infrastructure
Employer	Greene Consulting Engineers (Pty) Ltd — Reg No: 2009/001718/07
Address	Bondev Office Park, Block D, Cnr Willem Botha & Wierda Rd, Eldoraigne, Centurion
Employment Start	1 March 2026
Employment End	9 March 2026 — 9 calendar days
Monthly Salary	R36,500 gross
MD / CEO	JM Watermeyer — Pr Eng, Pr CPM, BEng — signed NDA — Johann@greenegroup.co.za
Director (Letter Signatory)	Floris Jordaan (FPJ Jordaan) — Pr Tech Eng Civil — floris@greenegroup.co.za
Director	Rikus De Beer — Pr Eng, PMP — rikus@greenegroup.co.za
Associate (Named Supervisor)	Larry Nell (LG Nell) — Pr Eng Civil — larry@greenegroup.co.za
Junior Engineer 1	Ruan Van Zyl — UNREGISTERED — directed as your superior
Junior Engineer 2	Jacques Van Der Walt — UNREGISTERED — directed rebar detailing
Junior Engineer 3	Sean (surname TBC) — UNREGISTERED — directed as

	your superior
Mark Manthe	Director — mark@greenegroup.co.za — CC'd on all chain emails
Antony Joppan	IT/Civil Dept — antony@greenegroup.co.za
Recruitment Agent (Witness)	Amy van der Merwe — Tumaini — amy.vdme... — INDEPENDENT THIRD PARTY WITNESS
Firm Age	Established 2009 — 16 years old at dismissal
Firm Size	Approximately 13 employees

2.2 The Complete Chronology — Every Material Event

DATE / TIME	EVENT & SIGNIFICANCE
26 Feb 2026	NDA / Registration Form signed — bilateral — Clause 3.2.5 excludes statutory disclosures — Larry later discloses NDA existence to Amy van der Merwe in a reply-all email, waiving confidentiality on that point
26 Feb 2026	Employment Contract signed — Clause 1 names Larry Nell as direct supervisor — Clause 3 requires lawful instructions — Clause 10 requires disciplinary code for termination — All three used in your favour
1 Mar 2026 (Day 1)	Employment commenced — No laptop ready — No AutoCAD licence — No workstation prepared — You proactively attempted setup, asked Carlien about IT, worked on Saxby drawings with Jeak. Greene later used your departure before 5pm as a conduct concern, but their own IT person was on sick leave.
1 Mar 2026 (Day 1)	Seated with draughting team — space available in engineering area — isolation from engineering function documented
1 Mar 2026 (Day 1)	Assigned rebar detailing drawings under direction of Jacques Van Der Walt — draughting function, not engineering work
3 Mar 2026 5:47am	YOUR SICK DAY EMAIL — Sent to Larry and Antony only — Professional, provided medical certificate, raised laptop/AutoCAD concerns — This is when the chain started
3 Mar 2026 9:31am	LARRY'S REPLY — Expanded chain to: You + Amy van der Merwe (To field) + Johann Watermeyer + Mark Manthe + Floris + Rikus + Antony (CC). LARRY INTRODUCED AMY INTO THE CHAIN. Also disclosed NDA in Point 5 (Professional Priorities) in an email she received.
3 Mar 2026 ~2:37pm	Your reply with medical certificate — maintaining Larry's reply-all chain — Amy remains in the chain. You provided sick note, responded professionally to all 7 points, apologised for tone.

3 Mar 2026 ~2:47pm	Rikus De Beer hierarchy email — full PrEng credentials in signature — 'The instruction to Antony to set up your laptop is not well received' — Amy received this
Early Mar 2026	Assigned phantom structural design exercise — only input was an internal plan layout — no architect drawings, no geotech, no client, no brief — Junior engineer confirmed in writing: 'all they have is a location and a project name'
4 Mar 2026	Second sick day — extended sick leave — apologised again to team — asked to reschedule alignment meeting
5 Mar 2026 7:00–8:00am LARRY'S OFFICE	CRITICAL — DISMISSAL INTENTION COMMUNICATED: Larry Nell met with you in his office and told you upper management was not impressed and wanted to let you go. This meeting followed your 3 March sick day email raising onboarding concerns. This establishes that the decision to dismiss you was formed on 5 March — BEFORE your 6 March comprehensive email — proving the dismissal was triggered by your first protected communication, not the 6 March email. Document this in your personal log immediately.
5 Mar 2026	Alignment meeting with Larry — focused on hierarchy not your concerns — alignment meeting used as reprimand vehicle not support session. By this point Larry had already communicated the dismissal intention earlier that same morning.
5 Mar 2026 Morning	MD Johan Watermeyer verbal statement to you: 'You spoke to Larry, good. Fall in line' — DOCUMENTED in timestamped personal note
5 Mar 2026 Morning	Floris Jordaan verbal ultimatum: Must report to Jacques Van Der Walt, Ruan Van Zyl, and Sean as superiors — accept or leave — DOCUMENTED in timestamped personal note and confirmed email
6 Mar 2026 5:06am	YOUR COMPREHENSIVE EMAIL — Subject: Outstanding Matters — Project Brief, Supervision, Onboarding & Role Alignment — Sent to larry@greenegroup.co.za — CC: daryl@greenegroup.co.za AND Amy van der Merwe — 8 professional concerns documented in writing — PIVOTAL DOCUMENT
6 Mar 2026	Floris confirmation email sent — documenting reporting structure ultimatum — Floris directed to report to Jacques, Ruan, Sean — accept or leave — Engineering Profession Act cited
9 Mar 2026 Morning	Called into meeting — offered opportunity to raise concerns — Floris response: 'You are not going to change the way we do things here' — documented same day in dismissal confirmation email
9 Mar 2026	Employment verbally terminated — end of probation — no disciplinary hearing — verbal one month offer made but NOT documented in termination letter
9 Mar 2026	Formal termination letter issued — signed by Floris Jordaan — states insubordination and incompatibility — contains the fatal internal contradiction at Points 3 and 5
9 Mar 2026	YOUR DISMISSAL CONFIRMATION EMAIL — sent to Floris, Larry, Rikus — documented dismissal, unaccepted verbal offer, Floris statement quoted verbatim, all rights reserved

9 Mar 2026	YOUR FORMAL REBUTTAL EMAIL — point by point dispute of all termination letter claims — NDA Clause 3.2.5 cited — Contract Clause 10 breach cited — s187 automatically unfair dismissal cited
11 Mar 2026	GREENE RESPONSE TO REBUTTAL — maintains position — acknowledges 9 March resolution discussion — invites applicant to submit settlement proposal — states company does not intend to engage in further correspondence
11 Mar 2026	YOUR WITHOUT PREJUDICE SETTLEMENT PROPOSAL — formal proposal sent to Floris — opening R219,000 net — 7 terms: compensation, neutral reference, certificate of service, ECSA rights preserved (non-negotiable), confidentiality, full and final settlement, 48hr response deadline of 13 March 17:00
13 Mar 2026	GREENE DECLINES SETTLEMENT — counter-proposes UI19 notation change only (zero monetary value) in exchange for permanent waiver of ALL rights including CCMA and ECSA — raises new sick leave pay dispute claiming 2 sick days unpaid — first time this position raised — not in termination letter — BAD FAITH CONDUCT ON RECORD
13 Mar 2026	YOUR REJECTION OF GREENE COUNTER — formally declines UI19-only offer — reserves sick leave pay rights — confirms CCMA filing proceeding — settlement exhausted in good faith

SECTION 3 — THE LEGISLATION: EVERY LAW BROKEN, VERBATIM TEXT, WHERE TO FIND IT

For each law below: read the exact text, understand what Greene did that breaches it, memorise the section reference. You must be able to cite these from memory at the CCMA.

3.1 LRA s187 — Automatically Unfair Dismissal [YOUR PRIMARY WEAPON]

Full Title	Labour Relations Act 66 of 1995
Section	187(1)(b) and 187(1)(h) — Automatically Unfair Dismissals
Compensation	Section 194(3) — Up to 24 months remuneration = R876,000 maximum
Find it at	www.gov.za/documents/labour-relations-act | www.saflii.org (free)

LRA s187(1)(h)	*A dismissal is automatically unfair if the reason for the dismissal is that the employer wished to prevent the employee from exercising a right conferred by this Act or any employment law.*

LRA s194(3)	*If the unfair dismissal is an automatically unfair dismissal, the compensation awarded to the employee may not exceed the equivalent of 24 months remuneration calculated at the employee's rate of remuneration at the date of dismissal.*

What Greene Did

- You first raised protected concerns in writing in your 3 March 2026 sick day email — raising onboarding failures and professionalism concerns
- On 5 March 2026 between 7:00 and 8:00am in Larry's office, Larry Nell told you upper management was not impressed and wanted to let you go — THE DISMISSAL DECISION WAS COMMUNICATED ON 5 MARCH — BEFORE YOUR 6 MARCH EMAIL
- This proves the dismissal was triggered by your 3 March protected communication — not the 6 March email Greene cites in the termination letter
- You then asserted your right to PrEng supervision under the Engineering Profession Act in writing on 6 March 2026 — a second protected act
- Greene dismissed you formally on 9 March 2026 — citing the 6 March email — but the decision had already been made on 5 March following the 3 March email
- The causal link runs from 3 March protected email → 5 March dismissal decision communicated by Larry → 9 March formal execution — a continuous retaliatory sequence

- There is NO probation exception to s187 — automatically unfair dismissal applies to all employees regardless of probationary status

Your Script

'Commissioner, my dismissal is automatically unfair under Section 187(1)(h) of the Labour Relations Act 66 of 1995. I want to draw attention to the sequence of events. On 3 March 2026 I sent my first email raising onboarding concerns. On 5 March between 7 and 8am, Larry Nell called me into his office and told me upper management was not impressed and wanted to let me go. That is a documented verbal communication of dismissal intent — made before my 6 March comprehensive email that Greene cites in the termination letter. The dismissal decision was formed in response to my first protected communication on 3 March. The 6 March email gave Greene a written justification they then used in the termination letter, but the decision was already made. Furthermore, the Engineering Profession Act is an employment law — my right to proper PrEng supervision is conferred by that Act. The maximum compensation under Section 194(3) is 24 months — R876,000 in my case.'

VERDICT: Greene's termination letter is your proof. You do not need to argue the facts. The letter argues them for you.

→ **Cross-ref:** *Section 5 — Engineering Profession Act | Section 6 — Termination Letter | Section 7 — Evidence Chain*

3.2 LRA Schedule 8 — Procedural Unfairness

Full Title	Labour Relations Act 66 of 1995 — Schedule 8: Code of Good Practice: Dismissal
Items	Items 4(1), 4(2) — Investigation and hearing requirements | Item 8(1)-(5) — Probation provisions
Find it at	www.gov.za/documents/labour-relations-act — Schedule 8 at back of Act

Sch 8 Item 4(1)-(2)	*The employer should conduct an investigation to determine whether there are grounds for dismissal. The employer should notify the employee of the allegations using a form and language that the employee can reasonably understand. The employee should be allowed the opportunity to state a case in response to the allegations.*

Sch 8 Item 8(5)	*An employer may dismiss an employee during probation if the employee is found to be unsuitable for the position. [NOTE: This provision applies to unsuitability — NOT to misconduct. Greene stated insubordination — that is misconduct — requiring a disciplinary hearing regardless of probationary status.]*

What Greene Did

- No investigation conducted into alleged insubordination — confirmed by absence of any investigation record
- No written notice of allegations issued — termination letter was the first formal document
- No disciplinary hearing convened — confirmed by absence of any hearing record
- No opportunity to respond to specific charges provided before dismissal decision
- Greene relied on Item 8(5) unsuitability provision but stated insubordination — misconduct — as the reason
- Misconduct dismissals require a hearing regardless of probation — Item 8(5) cannot be used for misconduct dismissals
- Employment Contract Clause 10 independently requires Greene to follow their disciplinary code — they breached their own contract

The Critical Distinction You Must Make

Greene's argument: Item 8(5) permits probation dismissal without full process.

Your answer: Item 8(5) applies to UNSUITABILITY. Greene stated INSUBORDINATION — that is MISCONDUCT. You cannot use an unsuitability provision to justify a misconduct dismissal. A disciplinary hearing was required.

VERDICT: No investigation. No charge. No hearing. Greene's own contract required it. Two separate procedural failures documented.

→ **Cross-ref:** *Section 4 — Employment Contract Clause 10*

3.3 LRA s188 — Substantive Unfairness

Full Title	Labour Relations Act 66 of 1995 — Section 188
Test	Dismissal is unfair if employer fails to prove fair reason AND fair procedure
Find it at	www.gov.za/documents/labour-relations-act

LRA s188(1)	*A dismissal is unfair if the employer fails to prove that the reason for dismissal is a fair reason related to the employee's conduct or capacity, and that the dismissal was effected in accordance with a fair procedure.*

What Greene Did

- Stated reason is insubordination — insubordination requires refusing a lawful instruction
- The instruction to report to unregistered engineers as supervisors is NOT lawful under the Engineering Profession Act
- An unlawful instruction cannot ground a finding of insubordination under South African labour law

- The rebar detailing complaint was accompanied by explicit willingness to comply — not a refusal — Greene selectively quoted half the sentence
- Even if lawful, dismissal for a first offence email raising professional concerns after 9 days is disproportionate under Schedule 8 Item 7

VERDICT: The reason stated — insubordination — fails because the instruction itself was unlawful. No valid reason for dismissal exists.

3.4 BCEA s37 — Notice Pay

Full Title	Basic Conditions of Employment Act 75 of 1997 — Section 37
Minimum notice	One week for less than 6 months service
Key provision	Section 37(2) — BCEA minimum overrides any lesser contractual provision
Find it at	www.gov.za/documents/basic-conditions-employment-act

BCEA s37(1)(a) and 37(2)	*Notice of termination given by an employer must not be less than one week if the employee has been employed for six months or less. A provision in a contract of employment that provides for a shorter period of notice is void and of no effect.*

- Contract Clause 4 provides 24 hours notice during first four weeks — this clause is VOID under BCEA s37(2)
- You are entitled to one week's notice pay — approximately R8,400 gross — regardless of what the contract says
- Greene must also provide a Certificate of Service under BCEA s62 — demand this in the settlement

3.5 Engineering Profession Act 46 of 2000 — Supervision

Full Title	Engineering Profession Act 46 of 2000 (EPA)
Key sections	Section 2(c) — Objects of ECSA | Section 26 — Prohibition on unregistered practice
ECSA documents	ECSA Code of Conduct | ECSA Guidelines for Candidate Engineers
Find it at	www.gov.za/documents/engineering-profession-act | www.ecsa.co.za

EPA s26	*No person shall perform any act falling within the scope of the profession of an engineer unless such person is registered in terms of this Act in the appropriate category.*

ECSA Code s4	*A registered person shall accept responsibility for engineering work only when qualified to perform it. A candidate engineer must be under the active supervision of a registered professional engineer for all work submitted as qualifying experience for professional registration.*

What Greene Did

- Directed you — a candidate engineer — to report to Ruan Van Zyl, Jacques Van Der Walt, and Sean as formal superiors — all unregistered
- Larry Nell named in contract but never assigned a project, reviewed work, or conducted any mentorship in 9 days of employment
- CRITICAL NEW FACT — When asked how supervision would function in practice, Floris stated Larry Nell would sign off on the work. This is an explicit employer admission that supervision was administrative not active — rubber-stamping completed work, not guiding the engineering process
- Sign-off supervision is not ECSA-qualifying supervision. Active supervision requires project assignment, methodology review, professional guidance, and mentorship — not a signature at the end of a process the supervisor had no part in
- Assigned structural design exercise without architect drawings, geotech, client, or brief — only an internal plan layout
- Floris Jordaan (signatory of termination letter) is Pr Tech Eng Civil — different registration category to Pr Eng — limited scope of practice
- ECSA requires active, substantive supervision — not merely a name in a contract or a sign-off at the end

This Law Is Your Insubordination Defence

Greene says: You refused a lawful instruction to report to Ruan Van Zyl.

Your answer: The Engineering Profession Act makes that instruction unlawful. My employment contract Clause 3 requires instructions to be lawful. I cannot be insubordinate for refusing an unlawful instruction. I cited this Act in my email of 6 March 2026. Greene then dismissed me for citing it. That is Section 187 automatically unfair dismissal.

VERDICT: The EPA is the foundation of your entire defence. Without the EPA, Greene might have an argument. With the EPA, they have none.

→ **Cross-ref:** *Section 3.1 — LRA s187 | Section 4.2 — Contract Clause 3*

SECTION 4 — EMPLOYMENT CONTRACT: EVERY CLAUSE IN YOUR FAVOUR

NOTE: The employment contract was signed 26 February 2026. Every clause below was violated by Greene or works in your favour.

4.1 Clause 1 — Job Title and Supervisor

Contract Cl.1	*The Employee shall be employed as a Structural Engineer and will report directly to Mr Larry Nell.*

- Greene committed in writing that Larry Nell is your direct supervisor
- Larry Nell never assigned a project, reviewed your work, or conducted any mentorship in 9 days
- Greene simultaneously directed you to report to Ruan Van Zyl — contradicting this clause in the same termination letter that cites the clause
- Ask at CCMA: 'Can the employer produce a single email, project assignment, reviewed calculation, or meeting note showing Larry Nell functioned as my active supervisor during my 9 days of employment?' They cannot.

→ **Cross-ref:** *Termination Letter Points 3 & 5 — the fatal contradiction*

4.2 Clause 3 — Duties: The Word LAWFUL Is Your Weapon

Contract Cl.3	*The Employee agrees and undertakes to obey all reasonable and LAWFUL orders and instructions that may be given by any person employed by the Employer who is in a managerial or supervisory position.*

- The word LAWFUL is explicit in the clause Greene uses to argue insubordination against you
- An instruction requiring you to violate the Engineering Profession Act is NOT lawful
- Greene's Clause 3 contains its own defence against their insubordination argument — the word lawful
- You cannot be disciplined for refusing an unlawful instruction under South African labour law — this is established principle

→ **Cross-ref:** *Section 3.5 — EPA s26 | Section 3.3 — LRA s188*

4.3 Clause 4 — Probation: What It Cannot Do

Contract Cl.4	*During the first four weeks this contract may be terminated by either party upon 24 hours notice. [BCEA s37(2) renders 24-hour clause void — minimum is one week's notice.]*

- 24-hour notice clause is void under BCEA s37(2) — you are entitled to one week's notice pay = R8,400 gross
- MORE IMPORTANTLY: Probation provisions cannot override Section 187 automatically unfair dismissal protections
- Section 187 applies to ALL employees regardless of probationary status — this is not disputed in South African law
- Item 8(5) unsuitability provision cannot be used for misconduct dismissals — as discussed in Section 3.2

→ **Cross-ref:** *Section 3.1 — LRA s187 | Section 3.2 — LRA Sch 8 Item 8(5)*

4.4 Clause 10 — Disciplinary Obligation: They Broke Their Own Contract

Contract Cl.10	*The Employer will in such event follow the procedure laid down in the disciplinary code and procedure.*

- Greene's own contract explicitly requires them to follow their disciplinary code before termination for misconduct
- No disciplinary code was followed — no hearing, no charge, no process
- This is a breach of the employment contract itself — a separate civil claim running parallel to the LRA claim
- State to commissioner: 'In addition to the LRA violations, the employer breached Clause 10 of their own employment contract which explicitly required them to follow their disciplinary procedure.'

→ **Cross-ref:** *Section 3.2 — LRA Schedule 8 Item 4*

4.5 Clause 20 — IP: Why Your Knowledge Cannot Be Claimed

Contract Cl.20	*The Employer shall reserve the right to retain all rights to any inventions, designs, discoveries conceived by the Employee DURING employment.*

- This clause covers inventions made DURING employment — not pre-existing knowledge
- Your seismic design methodology, sinkhole experience, and warehouse structural knowledge were developed at L&S Consulting and Nadeson BEFORE Greene
- Pre-existing professional knowledge cannot be assigned through an employment contract under South African IP law
- Your 9-day calculations are based on 3 years of prior knowledge — not Greene-specific inventions

4.6 NDA Clause 3.2.5 — The Clause That Defeats Their Suppression

NDA Cl.3.2.5	*Confidential Information excludes information that: must be disclosed by law,*

provided notice is given to the Disclosing Party in advance.

- ECSA complaint is governed by the Engineering Profession Act — a statutory disclosure — excluded by Clause 3.2.5
- CCMA referral is a statutory right under LRA s191 — confirmed by Greene in their own termination letter — excluded by Clause 3.2.5
- Larry Nell disclosed the NDA's existence and application to Amy van der Merwe in his 3 March reply-all email — waiving confidentiality on that subject to a third party
- Greene cannot invoke an NDA to suppress statutory rights — this principle is established in South African contract law

→ **Cross-ref:** *Section 7 — Amy van der Merwe as Independent Witness*

SECTION 5 — TERMINATION LETTER: YOUR MOST POWERFUL EXHIBIT

NOTE: Termination letter dated 9 March 2026. Signed by Floris Jordaan, Director. 4 pages. This document simultaneously provides your dismissal evidence AND destroys Greene's defence through its own internal contradiction.

5.1 What the Letter Proves FOR You

- Confirms dismissal on 9 March 2026 — establishes the dismissal event for CCMA purposes — 30 day clock starts here
- Quotes your 6 March email asserting Engineering Profession Act rights as the REASON for dismissal — establishes causal link for s187
- Acknowledges Section 191 LRA referral right — they cannot retract this
- References instruction to report to Ruan Van Zyl as the operational instruction you refused — confirming unregistered supervision was the actual arrangement
- Signed by Floris Jordaan with full professional credentials — a registered person formally acknowledging the facts

5.2 Point 3 — The Insubordination Claim: Why It Fails

THEIR CLAIM	Your written correspondence of 6 March 2026 records a refusal to comply with operational instructions — which constitutes insubordination.

- Statement 1 (reporting to Ruan Van Zyl): This is an assertion of EPA statutory rights — not a refusal to work — cannot constitute insubordination under s187
- Statement 2 (rebar detailing): Your email explicitly stated 'I do not mind doing this type of work to align myself with company standards' — this is not a refusal — Greene quoted half the sentence and omitted the willingness clause
- For insubordination: instruction must be lawful, reasonable, and clearly communicated — supervision instruction fails the lawfulness test
- Greene's insubordination argument requires them to prove the instruction was lawful — they cannot do this without contradicting the Engineering Profession Act

5.3 Point 4 — The Process Claim: The Fatal Conflation

THEIR CLAIM	Schedule 8 Item 8(5) permits dismissal during probation if employee found to be unsuitable.

- Item 8(5) applies to UNSUITABILITY — Greene stated INSUBORDINATION (misconduct) as the reason
- These are two entirely separate legal grounds with different procedural requirements

- A party cannot use an unsuitability provision to justify a misconduct dismissal — the Code of Good Practice distinguishes them explicitly
- This conflation is a fatal procedural error in Greene's case

5.4 Point 5 — The Supervision Claim: THE CENTRAL CONTRADICTION

THEIR CLAIM	Your assertion that you were not assigned a supervising PrEng is factually incorrect. You were assigned to report to Mr Larry Nell who is a registered Professional Engineer.

CRITICAL: POINT 5 DIRECTLY CONTRADICTS POINT 3 OF THE SAME DOCUMENT. This contradiction is irresolvable. It is your single strongest argument. Hand the commissioner the letter and point to both points simultaneously.

- Larry Nell is named in the contract — not disputed
- Larry Nell never assigned a project, reviewed work, or conducted mentorship in 9 days — the distinction between nominal and substantive supervision
- Point 3 of the SAME letter confirms you were instructed to report to Ruan Van Zyl as a lawful operational instruction
- If Larry Nell was your ACTIVE supervisor, the instruction to report to Ruan Van Zyl contradicts that arrangement
- If Ruan Van Zyl was your ACTUAL reporting line, Larry Nell was NOT your active supervisor
- Both statements cannot be true simultaneously — Greene's case collapses on its own document

5.5 What Is Missing From the Letter

- No reference to the verbal one month settlement offer — made verbally, not documented, not accepted
- No reference to any disciplinary hearing, charge sheet, or finding — because none occurred
- No written performance concerns previously issued — because none were issued
- No response to the 8 professional concerns in your 6 March email — because they had no answer
- No named replacement PrEng supervisor — because no genuine supervision existed

SECTION 6 — THE EMAIL CHAIN: THREE INDEPENDENT EVIDENCE REPOSITORIES

This section documents the email chain evidence and the critical role of Amy van der Merwe as an independent third party witness. This is new evidence not available to many self-represented employees.

6.1 How Amy van der Merwe Became a Witness

STEP	WHAT HAPPENED
3 Mar 5:47am	YOU sent sick day email to Larry and Antony only — Amy NOT copied
3 Mar 9:31am	LARRY replied — added Amy van der Merwe to the To field alongside you — also CC'd Johann, Mark, Floris, Rikus, Antony — LARRY INTRODUCED AMY
3 Mar 2:37pm	YOU replied with medical certificate — maintaining Larry's chain — Amy still in To field
3 Mar 2:47pm	YOU replied to Rikus hierarchy email — chain still includes Amy
6 Mar 5:06am	YOU sent Outstanding Matters email — deliberately CC'd Amy and daryl@greenegroup.co.za
6 Mar onward	All subsequent correspondence on this chain received by Amy in real time

KEY FACT	Larry Nell introduced Amy van der Merwe into the correspondence on 3 March at 9:31am — before any dispute had escalated. You did not introduce the recruitment agent. Greene did. This destroys any argument that you improperly disclosed information to a third party.

6.2 What Amy Holds in Her Inbox

- Larry's 7-point sick day response including the NDA reference and hierarchy assertion — 3 March 9:31am
- Rikus De Beer's hierarchy email with full PrEng credentials — 3 March ~2:47pm
- Your professional measured responses and apologies for tone — 3-4 March
- Your comprehensive 6 March email covering all 8 professional concerns — 6 March 5:06am
- Larry's response to the 6 March email if he replied to the chain

- Everything from both chains — Sick Day and Outstanding Matters — received in real time independently

6.3 The NDA Waiver Through Larry's Own Email

LARRY'S EMAIL 3 MARCH — Point 5 (Professional Priorities)	Accommodations have already been made to facilitate your onboarding, including the additional NDA and consideration of your external commitments.

- Larry disclosed the existence and relevance of the NDA to Amy van der Merwe in an email she was in the To field of
- A party cannot disclose confidential information to a third party and then invoke confidentiality obligations against the other party regarding the same subject matter
- Larry's 3 March email waived confidentiality regarding the NDA's existence and application in relation to Amy van der Merwe
- This eliminates any practical NDA argument Greene could make in relation to correspondence witnessed by Amy

6.4 Three Independent Evidence Repositories

REPOSITORY	WHAT IT HOLDS
Your Personal Email (dkmack22@outlook.com)	All emails sent from your personal account — permanently in sent items — cannot be deleted by Greene — timestamped independently
Greene's Server (daryl@greenegroup.co.za CC)	6 March outstanding matters email was CC'd to daryl@greenegroup.co.za — exists on Greene's own server — they cannot deny receipt
Amy van der Merwe's Inbox (Tumaini)	Entire chain from 3 March onward — received independently — cannot be deleted by Greene — third party record

6.5 Contacting Amy — What to Say

Email Amy today or tomorrow. Her address is in your inbox from the chain. Use this exact wording:

EMAIL TO AMY	Good day Amy, I hope you are well. I wanted to reach out to inform you that my employment with Greene Consulting Engineers was terminated on 9 March 2026. I am pursuing formal proceedings and you were copied into correspondence throughout my employment from 3 March onward. I would be grateful if you could retain all emails from the Sick Day and Outstanding Matters correspondence

chains as these may be relevant to proceedings. I will be in touch formally in due course. Kind regards, Daryl Mack.

SECTION 7 — THE ECSA COMPLAINT: YOUR PARALLEL WEAPON

7.1 Why File With ECSA

- Runs completely independently of the CCMA — does not wait for CCMA resolution
- Creates immediate pressure on Larry Nell and Rikus De Beer personally — their registration, indemnity insurance, and signing authority are at risk
- A parallel ECSA investigation dramatically accelerates Greene's motivation to settle the CCMA matter
- Free to file — no cost
- NDA Clause 3.2.5 explicitly permits statutory disclosures — ECSA complaint is protected

7.2 The Three Grounds

Ground 1 — Failure to Provide Active PrEng Supervision

- Larry Nell named as supervisor in contract but never functioned as one in 9 days
- No projects assigned, no work reviewed, no mentorship provided
- Larry received formal written notice on 6 March 2026 requesting PrEng confirmation — no response provided

Ground 2 — Directing Candidate Engineer to Unregistered Supervisors

- Floris directed you to report to Ruan Van Zyl, Jacques Van Der Walt, and Sean — all unregistered
- Confirmed in writing in 6 March email — not denied in termination letter

Ground 3 — Work Assigned Without Adequate Professional Oversight

- Structural design exercise assigned with only an internal plan layout — no brief, no geotech, no architect drawings
- Junior engineer confirmed in writing: all available information was a location and project name

7.3 How to File

1. Go to www.ecsa.co.za
2. Search public register for: Larry Nell (Pr Eng Civil) and Rikus De Beer (Pr Eng PMP) — record their registration numbers
3. Search for Greene Consulting Engineers — record firm registration number
4. Complete online complaint form — state all three grounds
5. Attach: employment contract, 6 March email to Larry, Floris confirmation email, termination letter, rebuttal email, timestamped notes
6. Reference: Engineering Profession Act 46 of 2000 and ECSA Code of Conduct

SECTION 8 — FINANCIAL SUMMARY: KNOW EVERY NUMBER

8.1 Statutory Entitlements

ENTITLEMENT	AMOUNT
Salary to 9 March 2026 (9 days)	R15,165 gross approx (R36,500 ÷ 21.67 × 9)
Notice pay — BCEA minimum 1 week	R8,400 gross approx (Contract 24-hr clause VOID under BCEA s37(2))
Pro rata 13th cheque (9/365)	R900 gross approx
TOTAL STATUTORY MINIMUM	R24,465 gross before PAYE deductions
UIF entitlement	File immediately — small but establish the record

8.2 Settlement Target — Know These Cold

POSITION	AMOUNT NET
Opening demand (6 months net)	R219,000 — formally submitted to Greene on 11 March 2026 — DECLINED
Strong outcome (4-5 months net)	R146,000 to R183,000
Absolute floor — do not go below this	R109,500 net — 3 months
Greene's counter-proposal — 13 March	UI19 notation change only — ZERO monetary value — declined — bad faith on record
Greene's original verbal opening offer	R36,500 — one month — verbal only — not accepted — not in termination letter
Maximum theoretical CCMA award	R876,000 — LRA s194(3) — 24 months — automatically unfair dismissal ceiling
New pay dispute — sick leave	Two sick days claimed as unpaid by Greene on 13 March — first time raised — disputed — reserved as additional claim
Greene's total legal exposure	R876,000 CCMA + sick leave claim + ECSA sanctions + legal costs R40,000-R90,000 + management time + reputational damage

8.3 Non-Monetary Settlement Terms — Non-Negotiable

- Neutral reference — exact agreed wording in settlement document — employment dates and position only
- No derogatory reference clause — Greene cannot say anything negative when called by future employers
- NO ECSA MISCONDUCT REPORTING WAIVER — this is absolute — the right cannot be contracted away
- Tax directive — settlement paid net of tax or subject to tax directive — could save R20,000 to R40,000
- Certificate of service — BCEA statutory obligation — confirm in agreement
- Payment within 7 days of signature — no delayed payment
- Specific exit date — defined clearly in agreement

SECTION 9 — THE CCMA PROCESS: STEP BY STEP

9.1 Filing — Do This First

Where	CCMA Pretoria — Metro Park Building, 351 Francis Baard Street, Pretoria
Hours	07:30 Monday to Friday
Form	LRA Form 7.11 — available at office or www.ccma.org.za
Cost	FREE
DEADLINE	30 days from 9 March 2026 = 8 APRIL 2026 — DO NOT MISS THIS
Helpline	0861 161 616 — free — call before you go for guidance
What to state	Nature of dispute: Automatically unfair dismissal under Section 187(1)(h) LRA | Relief: Compensation of R219,000 net of tax
Note on form	State financial hardship — unemployed — request expedited hearing

9.2 Document Bundle — Take All of This

DOCUMENT	SIGNIFICANCE
This document	Your complete reference for every proceeding
Employment Contract	Clause 1 (Larry Nell supervisor), Clause 3 (lawful), Clause 10 (disciplinary obligation)
NDA — 26 Feb 2026	Clause 3.2.5 defeats suppression attempt — bilateral
Termination Letter — 9 March	Primary exhibit — fatal internal contradiction at Points 3 and 5
6 March Outstanding Matters email	Protected activity — 8 concerns — unanswered — sent to Amy
Floris confirmation email — 6 March	Documents ultimatum — unregistered supervision confirmed
Larry Nell meeting note — 5	CRITICAL — Documents that Larry told you upper

March 7-8am	management wanted to let you go on 5 March — BEFORE the 6 March email — proves dismissal decision predated the stated reason
MD Johan note — 5 March	Fall in line — timestamped
Floris ultimatum note — 5 March	Accept or leave — timestamped
Dismissal confirmation email — 9 March	Verbal offer not accepted — all rights reserved — Floris quote
Rebuttal email — 9 March	Point by point dispute — s187 cited — Clause 10 cited — NDA Clause 3.2.5 cited
Sick Day chain screenshots	Shows Larry introduced Amy — chain recipient list — 3 March 9:31am
Personal work log	Proves you produced work — counters any deletion claim
Timestamped calculations	Cloud-backed — predates any deletion
Chronological summary — 1 page	Give to commissioner first — tells the story clearly

9.3 Your Opening Statement at Conciliation — Memorise This

OPENING STATEMENT	Good day Commissioner. My name is Daryl Mack. I was employed by Greene Consulting Engineers from 1 March 2026 and dismissed on 9 March 2026 after 9 days of employment. I want to draw your attention to the timeline. On 3 March I sent my first email raising onboarding concerns. On 5 March between 7 and 8am, Larry Nell called me into his office and told me upper management was not impressed and wanted to let me go. That is the dismissal decision — communicated verbally two days before the 6 March email Greene cites in the termination letter. The decision was made because I raised concerns. My dismissal is therefore automatically unfair under Section 187(1)(h) of the Labour Relations Act. The employer's own termination letter further confirms the dismissal by quoting my 6 March assertion of Engineering Profession Act rights as the stated reason. In addition, no disciplinary hearing was held despite insubordination being the stated reason — a misconduct ground requiring a hearing under Schedule 8 Item 4. I am seeking compensation of R219,000 net of tax, a neutral reference, and preservation of my right to file with ECSA.

9.4 Settlement Mandate at Conciliation

Opening demand	R219,000 net — 6 months — justified by s194(3) R876,000 ceiling
Realistic outcome	R146,000 to R183,000 net — 4 to 5 months

Absolute floor	R109,500 net — do not go below — file at arbitration instead
What drives settlement	R876,000 exposure + ECSA personal registration risk + public arbitration record in small industry
Non-negotiable	No ECSA misconduct waiver — no matter the amount

9.5 Free Resources

CCMA Pretoria	Metro Park Building, 351 Francis Baard Street | 012 317 7800 | pta@ccma.org.za
CCMA Helpline	0861 161 616 — Free
Department of Labour	215 Francis Baard Street, Pretoria | 012 309 4000 | 07:30–16:00 Mon–Fri
Legal Aid South Africa	0800 110 110 — Free — representation for qualifying applicants at arbitration
ECSA Complaints	www.ecsa.co.za — Free
LRA Full Text	www.gov.za/documents/labour-relations-act
EPA Full Text	www.gov.za/documents/engineering-profession-act
BCEA Full Text	www.gov.za/documents/basic-conditions-employment-act
SAFLII — All Legislation	www.saflii.org — Free access to all South African legislation and case law

SECTION 10 — EXACT SCRIPTS: WHAT TO SAY IN EVERY SCENARIO

Read these aloud. Practise them. Know them. When you are calm and prepared, the commissioner sees that confidence.

10.1 If Asked Why You Refused the Reporting Instruction

YOUR SCRIPT	I did not refuse to work. I raised a professional concern in writing. The instruction to report to unregistered engineers as my formal supervisors is not a lawful instruction — it requires me to violate the Engineering Profession Act which governs my professional registration. My employment contract Clause 3 requires me to obey lawful instructions. The instruction was not lawful. I cannot be insubordinate for refusing an unlawful instruction. I cited this Act in my email of 6 March 2026. Greene then dismissed me for citing it. That is Section 187 automatically unfair dismissal.

10.2 If Asked About the Rebar Detailing

YOUR SCRIPT	I explicitly stated in my email of 6 March 2026 that I did not mind doing rebar detailing work to align with company standards. The full sentence reads: I do not mind doing this type of work to align myself with company standards, but this being the first task I received feels misaligned with my role and qualifications. That is not a refusal. That is a professional observation accompanied by explicit willingness to comply. Greene quoted half my sentence and omitted my willingness to comply.

10.3 If Greene Raises the Probation Period

YOUR SCRIPT	Section 187 of the Labour Relations Act has no probation exception. Automatically unfair dismissal applies to all employees regardless of probationary status. Furthermore, Schedule 8 Item 8(5) permits probation dismissals for unsuitability — not for misconduct. Greene stated insubordination as the reason. That is misconduct. A disciplinary hearing was required. None was held. The probation provisions do not assist the employer here.

10.4 If Greene Raises the NDA

YOUR SCRIPT	The NDA signed on 26 February 2026 contains Clause 3.2.5 which explicitly excludes from the definition of Confidential Information any information that must be disclosed by law. My ECSA complaint is governed by the Engineering Profession Act. My CCMA referral is a right under Section 191 of the LRA — confirmed by Greene themselves in their termination letter. Both are statutory disclosures falling within Clause 3.2.5. Furthermore, Larry Nell disclosed the

	NDA's existence and application to the recruitment agent Amy van der Merwe in his reply-all email of 3 March 2026 — waiving confidentiality on that subject matter with respect to that third party.

10.5 Presenting the Central Contradiction

YOUR SCRIPT	Commissioner, I would like to draw your attention to something in the employer's own termination letter. Point 5 states Larry Nell was my active supervising Professional Engineer satisfying supervision requirements. Point 3 of the same letter states that reporting to Ruan Van Zyl — an unregistered engineer — was a lawful operational instruction I was required to follow. Both statements cannot be true simultaneously. If Larry Nell was my active supervisor, the instruction to report to Ruan Van Zyl contradicts that arrangement and cannot simultaneously be a lawful instruction. If Ruan Van Zyl was my actual reporting line, Larry Nell was not my active supervisor. The employer's stated reason for dismissal collapses under this contradiction in their own signed document.

10.6 If Greene Claims You Were Incompatible

YOUR SCRIPT	Incompatibility requires evidence of genuine interpersonal conflict affecting the workplace. Greene has produced no such evidence. Every email I sent during my 9 days of employment was professional and measured. I apologised where I believed my tone was misread. I expressed willingness to comply with company standards including tasks below my qualifications. I attended all meetings requested. Raising written professional concerns about statutory violations is not incompatibility — it is the conduct of a professional who takes their obligations seriously.

10.7 If Greene Says Larry Nell Was Actively Supervising

YOUR SCRIPT	When I asked how supervision would function in practice, I was told Larry Nell would sign off on the work. Sign-off is an administrative function. It is not active supervision. Active supervision under the ECSA standard requires project assignment, work review, mentorship, and professional guidance. Being told a PrEng will sign off on completed work — without any engagement in the design process, without project assignment, without review of methodology — is not active supervision. It is a rubber-stamping arrangement. The ECSA requires substantive engagement, not a signature at the end of a process the supervisor had no part in.

10.8 If Greene Says the Meetings Were a Corrective Process

YOUR SCRIPT	The meetings that took place were not a corrective process. A corrective process under Schedule 8 of the LRA requires identifying a specific concern, providing guidance, allowing time to adjust, and reviewing improvement before considering

dismissal. The sequence in this case was: discussion, ultimatum, disagreement, dismissal. No written concern was formally communicated to me. No guidance was provided. No adjustment period was offered. No review occurred. Floris Jordaan's conclusion — 'this won't work' — was reached in the same meeting where the disagreement arose. That is not a corrective process. That is a decision.

10.9 If Greene Says You Thought You Were Better Than Everyone

YOUR SCRIPT

That appears to be a personal characterisation rather than a formal finding. I stated in the meeting that I do not believe I am better than anyone, that my colleagues and I are equals, and that I am willing to collaborate with the team. My concern was solely about professional supervision requirements under the Engineering Profession Act — not about the competence or standing of any individual. A personal characterisation of attitude is not a disciplinary ground. No formal finding was made. No process was followed.

10.10 The Correct Framing of This Entire Case — Use This Every Time

CORE FRAMING

This case is not about an employee who refused instructions. This is about an employee who raised a legitimate professional supervision concern and was dismissed without a fair process. I did not refuse to work. I asked how my professional supervision would function. I was told a PrEng would sign off on the work. I raised the concern in writing. I asked for time to consider. I remained cooperative throughout. No warning was issued. No counselling occurred. No adjustment period was offered. The sequence was discussion, ultimatum, disagreement, dismissal. That is not a fair process under South African labour law for any reason cited.

SECTION 11 — CURRENT STATUS AND NEXT ACTIONS

11.1 Completed — Filed and Submitted

- CCMA referral filed — 13 March 2026 at 2:51pm — pta@ccma.org.za — Section 191 LRA
- Supplementary CCMA documents submitted — 13 March 2026 — Documents 14 to 20 and Annexures A and B
- Final consolidated indexed CCMA bundle submitted — single PDF — 22 documents plus 2 annexures
- ECSA complaint submitted — ecsa-ic@ecsa.co.za — Larry Nell, Floris Jordaan, Rikus De Beer named
- Final consolidated indexed ECSA bundle submitted — single PDF — 10 documents
- UIF application submitted online — in person follow-up at Department of Labour required
- UI19 received from Greene — 13 March 2026 at 3:03pm — 12 minutes after CCMA filing — Code 4 Dismissed
- Settlement attempt made and exhausted — Greene's bad faith counter-proposal documented

11.2 Immediate — This Week

- Department of Labour in person — 215 Francis Baard Street Pretoria — 07:30 — take ID, UI19, bank details — register UIF in person — get reference number
- ECSA affidavit commissioning — print complaint affidavit — take unsigned to post office or bank — sign in front of commissioner of oaths — scan and email commissioned version to ecsa-ic@ecsa.co.za immediately
- Legal Aid South Africa — 0800 110 110 — apply for free arbitration representation this week
- Amy van der Merwe — 021 551 2621 — call to confirm she received preservation email and has retained all correspondence

11.3 Ongoing — Every Week Until Settlement

- Document financial position weekly — income zero, expenses unpaid, accommodation, job applications — email to yourself timestamped — becomes financial loss evidence at arbitration
- Maintain job application log — date, company, position, outcome — proves mitigation effort to commissioner
- Check email daily — CCMA will send case number — respond to every CCMA communication within 24 hours
- If no case number within 5 business days of filing — call 012 317 7800 and follow up

11.4 When CCMA Case Number Arrives

- Save immediately — phone, email, documents — all future correspondence references this number
- Confirm receipt by reply email to CCMA

11.5 When Conciliation Date Arrives

- Confirm attendance immediately by reply email
- Re-read Master Case Brief and Counter-Argument Defence the night before
- Print full bundle — take to hearing
- Arrive 15 minutes early
- Opening statement is prepared — memorised — in Section 9.3 of this document
- Settlement floor: R109,500 net — opening: R219,000 net — never sign on the day — take 48 hours

11.6 Key Contacts

CCMA Pretoria	012 317 7800 | pta@ccma.org.za | 351 Francis Baard Street
CCMA Helpline	0861 161 616
Department of Labour	012 309 4000 | 215 Francis Baard Street, Pretoria
Legal Aid SA	0800 110 110 — free arbitration representation
ECSA	ecsa-ic@ecsa.co.za | www.ecsa.co.za
Amy van der Merwe	021 551 2621 | amy.vdmerwe@tumaini.co.za — independent witness

SECTION 12 — MASTER CROSS-REFERENCE INDEX

Use this index to instantly find where any argument, law, or fact is documented.

ARGUMENT	SUPPORTING SECTIONS	SUPPORTING DOCUMENTS
Automatically unfair dismissal	s3.1 (LRA s187) | s4.3 (Contract Cl.3) | s5.1 (Letter proves)	3 March email (first protected act) | Larry 5 March meeting (dismissal decision) | 6 March email | Termination Letter
Dismissal decision made 5 March not 9 March	s3.1 (s187 causal link) | s2.2 (chronology)	Larry meeting note — 5 March 7-8am in his office | Termination letter contradicted by earlier verbal decision
No disciplinary process	s3.2 (LRA Sch 8 Item 4) | s4.4 (Contract Cl.10) | s5.3 (Letter Point 4)	Termination letter — no hearing referenced | Absence of records
Instruction was unlawful	s3.5 (EPA s26) | s4.2 (Contract Cl.3 'lawful') | s3.3 (LRA s188)	6 March email invoking EPA | Floris confirmation email
Fatal contradiction	s1.3 (Central contradiction) | s5.4 (Letter Point 5) | s4.1 (Contract Cl.1)	Termination letter Pages 2 and 3 — Points 3 and 5
NDA cannot suppress ECSA/CCMA	s4.6 (NDA Cl.3.2.5) | s6.3 (Larry's waiver) | s3.1 (s191 confirmed)	NDA document | Larry's 3 March email | Termination letter s191
Amy as independent witness	s6.1 (how she became witness) | s6.2 (what she holds) | s6.3 (NDA waiver)	3 March reply-all email header | 6 March email CC header
Larry not active supervisor	s4.1 (Contract Cl.1) | s5.4 (Letter Point 5) | s3.5 (EPA)	Termination letter contradiction | Absence of any supervision record | Floris sign-off admission
Sign-off is not active supervision	s3.5 (EPA active requirement) | s10.7 (Script)	Floris statement that Larry would sign off — rubber stamping admission — employer's own words
Rebar not a refusal	s5.2 (Letter Point 3) | s4.2 (Contract Cl.3)	6 March email — willingness clause present
Notice pay entitlement	s3.4 (BCEA s37) | s4.3 (Contract Cl.4 void)	Contract Clause 4 | BCEA text
Settlement leverage	s8.2 (targets) | s3.1 (s194(3) ceiling) | s7.1 (ECSA exposure)	R876,000 ceiling | ECSA risk to named PrEngs
Three evidence repositories	s6.4 (repositories) | s6.1 (chronology)	Personal email | Greene server CC | Amy's inbox

YOUR CASE IN THREE SENTENCES

I was dismissed for asserting my statutory right to proper engineering supervision.

Greene's own termination letter proves the reason and the causal link.

That is automatically unfair dismissal under Section 187(1)(h) of the Labour Relations Act.

Maximum compensation: R876,000 | Your opening: R219,000 net | Your floor: R109,500 net

CCMA DEADLINE: 8 APRIL 2026 — FILE TOMORROW

You are prepared. You are documented. You are ready to win.